

NICHOLAS v LEMP, et al

25CV48280

**PLAINTIFF'S MOTIONS FOR JUDGMENT
ON THE PLEADINGS**

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.")

Now before the Court are three separate motions for judgment on the pleadings brought by Lemp, with each motion seeking judgment on a different cause of action in the Complaint. The motions were filed on July 22, 2026. On July 24, 2026, the Court granted Plaintiff's motion for leave to file a First Amended Complaint ("FAC"). Plaintiff filed his FAC on July 24, 2026.

Accordingly, as the FAC was filed after the motions for judgment on the pleadings were filed, the motions are now moot.

The motions for judgment on the pleadings are therefore **DENIED, without prejudice.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**SAN ANDREAS SANITARY DISTRICT, et al v
LOCKWOOD, et al**

25CV48360

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

This is an action for breach of contract, nuisance, and declaratory judgment related to two permanent public utility easements and one access easement over three separate parcels of real property for the benefit of the San Andreas Sanitary District ("District.") Defendants are Lisa Lockwood ("Lockwood"), Donald Neu ("Neu") and Neuwood Ranch Goats, LLC. ("LLC") (collectively "Defendants.") Lockwood and Neu are the record owners of the Properties. LLC operates a goat grazing business, with Lockwood and Neu as members of the LLC.

Now before the Court is an order to show cause why a preliminary injunction should not issue against Defendants.

I. Background Facts

Lockwood and Neu own the real property commonly known as 1516 Highway 12, San Andreas, California 95249 located in Calaveras County identified by Assessor's Parcel Numbers: 040-008-060-000 ("Property 1"); 040-013-009-000 ("Property 2"; and 040-012-026- 000 ("Property 3" (collectively, the "Properties.") (Complaint ¶ 6.) The District holds three recorded easements (two permanent public utility easements and one access easement) granting it access to operate, maintain, inspect, and repair its wastewater treatment monitoring system over three separate and commonly owned parcels. (*Id.* ¶ 1.) The LLC operates a goat grazing business on the Properties. (*Id.* ¶ 7.)

In February of 2004, Isabel M. Neilsen, individually and as Trustee of the Isabel M. Neilsen Revocable Trust ("Neilsen") conveyed to the District a permanent easement for the purposes of placing, maintaining, and operating a flow meter on the Calaveras River together with a monitoring station and an access easement for ingress and egress. (Complaint ¶ 11.) Subsequently, Nielsen accepted the District's offer to purchase a temporary construction easement and an additional permanent utility easement for the installation and maintenance of an underground sewer main with surface manholes. (*Id.* ¶ 12.) In November of 2017, Nielsen conveyed the Properties by grant deed to Lockwood and Neu. (*Id.* ¶ 13.)

The District holds a 15-foot-wide permanent public utility easement and 15-foot-wide access easement over approximately 0.50 acres of Property 2 benefiting the District ("Check Dam Easements.") (Complaint ¶14, Ex. 3.) The Check Dam Easements